IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI BENCH, COURT-III

COMPANY APPLICATION NO. (CAA) – 40(ND)/2025

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION:

M/s. MASIBUS AUTOMATION AND INSTRUMENTATION PRIVATE LIMITED

HAVING ITS REGISTERED OFFICE AT:

B-30, G I D C ELECTRONICS ESTATE,

SECTOR-25, GANDHINAGAR,

GUJARAT – 382042 **... Transferor Company**

WITH

M/s. SONEPAR INDIA PRIVATE LIMITED

HAVING ITS REGISTERED OFFICE AT:

507, 5 TH FLOOR, BHIKAIJI CAMA BHAWAN,

BHIKAIJI CAMA PLACE, NEW DELHI,

DELHI – 110066

... Transferee Company /Applicant Company

Order Pronounced On: 30.06.2025

CORAM:

SHRI BACHU VENKAT BALARAM DAS,

HON'BLE MEMBER (JUDICIAL)

DR. SANJEEV RANJAN,

HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Ashutosh Gupta, Gaurav Rana, Ajitesh Kumar, Advs.

ORDER

PER: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

1. This is a 1st Motion Application filed by the Transferee Company/ Applicant seeking approval of this Tribunal about the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of the Transferee and the Transferor Company. It is represented that the registered office address of the Applicant Company / Transferee Company is situated in New Delhi and therefore the subject matter of the said Application falls within the jurisdiction of this Tribunal.

2. The Ld. Counsel(s) have given the brief description of the Transferor and the Transferee Company, which are as follows:

   i. Applicant Company / Transferee Company namely M/s. Sonepar India Private Limited, bearing CIN: U51109DL2009PTC194818 was incorporated on 01.10.2009 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of the Applicant Company is situated at 507, 5th Floor, Bhikaiji Cama Bhawan, Bhikaiji Cama Place, New Delhi, Delhi, India, 110066. The Authorized Share Capital of the Company is Rs. 1,60,00,00,000/- and the paid-up share capital of the Company is Rs. 1,52,25.52,000/-.

   ii. The Transferor Company namely M/s. Masibus Automation and Instrumentation Private Limited, bearing CIN: U32201GJ1987PTC009994 was incorporated on 21.09.1987 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, Ahmedabad. The registered office of Applicant Company No. 3 is situated at B-30, G I D C Electronics Estate, Sector-25, Gandhinagar, Gujarat – 382042. The Authorized Share

Capital of the Company is Rs. 3,70,00,000/- and the paid-up share capital of the Company is Rs. 3,07,57,130/-.

3. That Affidavit in support of the above Application has been sworn by Mr. Bharat Bhushan Nagpal, who has been duly authorized by the Board of Directors of the Transferee Company/ Applicant Company, at its Board Meeting held on 06.03.2025; and has been duly filed, along with the Application.

4. The Board of Directors of the Applicant in its meeting held on 06.03.2025 approved and adopted the Scheme of Amalgamation.

5. The proposed Scheme involves the Amalgamation of the Transferor Company with the Applicant / Transferee Company, whereby the whole of the business of the Transferor Company is proposed to be amalgamated with the Transferee Company, in the manner set out in the Scheme.

6. The Applicant submitted that as on 28.02.2025, there are only two (2) equity shareholders in the Transferee Company/Applicant Company. The Applicant further submitted that both the said shareholders have furnished their respective consents to the proposed Scheme of Arrangement by way of affidavits, thereby signifying their written approval to the Scheme.

7. The Applicant submitted that as on 28.02.2025, the Transferee Company/Applicant Company has no Secured Creditors on its books and has a total of 540 Unsecured Creditors. The Applicant further submitted that out of the said 540 Unsecured Creditors, 156 creditors, representing 91.35% in value of the total outstanding unsecured debt, have furnished their written consents to the proposed Scheme of Amalgamation, thereby signifying their approval to the Scheme.

8. In view of the above, the Applicant Company prays the following:

> *"…b. To pass directions may be given as to dispensation of the meeting of the Equity Shareholders of the Applicant Company/ Transferee Company;*

c. To pass directions may be given as to dispensation of the meeting of the Secured Creditor and Unsecured Creditors of the Applicant Company/ Transferee Company, and/ or…"

9. Having heard the submissions made by the Ld. Counsel and having perused the records/ documents placed on record, we allow the prayer(s) of the Applicant Company as under:

   a) We allow the prayer for dispensation of meetings of its Equity Shareholders, in view of the consent affidavits given by 2 shareholders having 100% equity shareholding in value.

   b) We allow the prayer for dispensation from convening and holding the meeting of its Secured Creditors, in view of absence of any Secured Creditor.

   c) We allow the prayer for dispensation Unsecured Creditors, in view of the fact that 156 out of 540 Unsecured Creditors which form 91.35% in value, have given their consent affidavit.

10. The Applicant Company has filed its Memorandum and Articles of Association inter alia delineating its object clauses as well as the latest audited annual financial reports i.e., financial statements for the financial year ending 31.12.2024, accompanied with auditor's reports as required under section 232(2)(e) of the Companies Act, 2013.

11. The prayer sought in the present Application bearing CA(CAA)-40/(ND)/2025 stands **allowed** on the aforesaid term and accordingly **disposed of**.

    The Registry is directed to serve the order to all the parties.

Sd/-

(DR. SANJEEV RANJAN)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)